

Niyaj v. State of U.P.

Allahabad High Court · Division Bench · 8 May 2015 · Criminal Misc. Writ Petition No. 11298 of 2015 · **FIR quash refused; CrPC 41-A directed; compounding under Code**

HEADNOTE

Criminal writ to quash an FIR under ss. 135 and 138 of the Electricity Act, 2003 refused because the FIR disclosed a cognizable offence. Arrest, if at all, must follow CrPC ss. 41(1)(b) and 41-A where the alleged offence will not entail more than seven years' sentence. Compounding, if available, is to be sought under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Niyaj filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash the FIR dated 17 January 2015 (Case Crime No. 13 of 2015) registered at Police Station Mundali, District Meerut, under Sections 135 and 138 of the Electricity Act, 2003. He had not been arrested. His counsel submitted that the FIR should be quashed, that police should not arrest him mechanically because any sentence could not exceed seven years, and that the alleged offence was compoundable.

HOLDING-UNITS

INTERPLAY · EA2003::135

FIR quash, arrest safeguards, and compounding of theft offence

HOLDING

An FIR under ss. 135 and 138 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed on a criminal writ. Where arrest has not been made and the alleged offence will not entail a sentence of more than seven years, any arrest must comply with CrPC ss. 41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135/138 OFFENCE IS IN FACT COMPOUNDABLE

Left to the petitioner to pursue under the Supply Code if the offence is compoundable. ¶ 1